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Roger Waterloo <i>d/b/a</i> EcoBamboo,	)	
<i>Complainant,</i>	)	
	)	
v.	)	
	)	
	)	DOCKET NO. 25-26
	)	
Marine Shipp Fast Ltd. d/b/a Ship4WD	)	
<i>Respondent.</i>	)	
	)	

Respondent Marine Shipp Fast Ltd. d/b/a Ship4WD (“Ship4WD” or “Respondent”) submits this reply to Complainant Roger Waterloo d/b/a EcoBamboo’s (“EcoBamboo” or “Complainant”) response to Respondent’s Cross-Motion to Dismiss (“Motion”).

The complaint initiating this proceeding was received by the Commission on September 2, 2025 and served by the Commission on September 9, 2025. Complainant filed a motion for default determination on September 26, 2025. On October 6, 2025, Respondent filed its response to Complainant's default motion and a cross-motion to dismiss. On October 7, 2025, Complainant filed a second motion for default determination.¹

¹ On October 13, 2025, Complainant served a supplemental exhibit to the complaint. Respondent reserves the right to respond to this supplemental exhibit should this proceeding be decided on the merits. However, given that such a response is not necessary for purposes of the pending motions, and in order to avoid further procedural complications, at this time Respondent offers no response beyond this footnote.

II. ARGUMENT

A. Complainant's Second Default Motion Should Not Be Entertained

Complainant's second default motion seeks the same relief as its first default motion and is therefore repetitious and should not be entertained.

Under 46 C.F.R. §502.69(d), a repetitious motion will not be entertained. Since Complainant's second default motion is repetitive of its first default motion, it should not be entertained. Rather, the second default motion should be understood and treated as a response to Respondent's cross-motion. Below, Respondent addresses the arguments raised in the second default motion as though it were a response to Respondent's cross-motion to dismiss.

B. Respondent's Pleadings Have Been Timely Filed And Served

Complainant argues that Respondent is delinquent in answering the complaint and in responding to Complainant's first default motion. These arguments are incorrect.

Insofar as the response to the complaint is concerned, the Commission's regulations call for an answer to a complaint to be filed within 25 days after service of the complaint unless a motion to dismiss is filed. 46 C.F.R. §502.62(b)(1). Thus, it is clear that a motion to dismiss can be filed in lieu of an answer.

The Commission served the complaint on September 9, 2025. An answer or motion to dismiss was due 25 days thereafter, i.e., on October 4, 2025.² October 4 was a Saturday. If the last day of the time period is a Saturday, Sunday or holiday, the time period continues until the next day that is not a Saturday, Sunday or holiday. 46 C.F.R. §502.101. Therefore, Respondent's answer or other responsive pleading was due on Monday, October 6. Respondent's cross-motion to dismiss was timely filed/served on October 6.

² Computation of time periods begins on the day following the act that triggers the time period. 46 C.F.R. §502.101.

Complainant's argument that the time period for filing an answer should begin from August 30 or September 2 was addressed in part in the opposition to the first default motion. Here, Respondent would merely add that Complainant's arguments make no sense from a procedural and policy perspective. If the time period for the filing of an answer were deemed to run from August 30, the time period for the filing of an answer would begin to run BEFORE a complaint is even filed with the Commission. Such a process is fraught with the potential for abuse and confusion. Consider a situation in which a complainant emails a complaint to a respondent on the 1st of the month. Under Complainant's arguments, the answer or other responsive pleadings would due on the 26th. However, suppose the complainant waits until the 23rd of the month to file the complaint with the Commission. The answer would be due before notice of the complaint appears in the Federal Register and before the proceeding is assigned to an administrative law judge. Suppose further that the Commission rejects the complaint due to failure to pay the filing fee or for other reasons? Would respondent still be required to file an answer because the clock had started running when the complaint was emailed? Sound administrative procedure requires rejection of Complainant's arguments with respect to the timeliness of Respondent's response to the complaint.

Similarly, Complainant's argument with respect of the timeliness of the response to the first default motion is also flawed. Complainant argues that the response to the September 26 default motion was due October 3, seven (7) days after service of the motion. However, this position mis-reads the Commission's regulations.

Under 46 C.F.R. §502.69(g), a motion for default judgment is a dispositive motion. Under 46 C.F.R. §502.70(b), a response to a dispositive motion is due fifteen (15) days after service of the motion. The first default motion was filed on September 26, meaning the response was due on October 13 (the first business day after Saturday, October 11, the 15th day after service of the

motion) – not on October 3 as Complainant’s mistakenly alleges. Because Respondent’s reply to the first default motion was served on October 6, it was timely served.

In light of the foregoing, Complainant’s arguments with respect to timeliness are without merit and should be disregarded.

C. The Complaint Remains Deficient And Should Be Dismissed

Respondent’s cross-motion to dismiss argued that the complaint should be dismissed because it fails to allege that Respondent’s actions were normal, customary and continuous, something the Commission has indicated is a necessary element of a successful claim under section 41102(c). Nothing in the second default motion remedies this fatal defect in the complaint.

The fundamental and critical fact is that Complainant’s allegations relate to a single shipment consisting of a single container. As previously noted, the Commission has stated that “§ 41102(c) is not violated by a single act or omission (even if unjust or unreasonable),” and that “Commission precedent has made clear that a single shipment or isolated act or omission does not show a pattern or practice.” *See Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, 2021 WL 3732849 at * 4, 8 (August 18, 2021); *Samsung Elec. Am., Inc. v. COSCO Shipping Lines Co, Ltd.*, Dkt. 24-16, 2025 WL 1126006, at *7 (ALJ Apr. 11, 2025). An FMC ALJ has also held that an allegation of a one-time occurrence does not satisfy the normal, customary, and continuous element of Section 41102(c) unless the Respondents have failed “for several years to take ‘corrective action’” to remedy an issue. *See Francis Sheka Kanu v. Ejike Dickson*, Dkt. 25-05, 2025 WL 2634210 at *6 (ALJ Sept. 4, 2025).

Complainant, in an effort to overcome the fatal defect in the complaint, makes two arguments. First, Complainant suggests that Respondent’s conduct constituted a practice for purposes of section 41102(c) because there allegedly were issues with both fumigation and

permitting of the shipment. Even assuming that Respondent was responsible for both fumigation and permitting (which Respondent would contest should this matter proceed to the merits), this does not change the fact that the alleged conduct is not alleged to have occurred more than once with respect to a single shipment. Hence, under the Commission's own definition and precedent the alleged conduct does not constitute a practice.

Complainant's second argument appears to be that there were a series of communications over a period of time and that this evidences a practice. There are two flaws with respect to this argument. The first flaw is that the communications relate to a single shipment. The fact that the parties had multiple communications with one another and third parties regarding this single shipment does not convert the conduct relating to that single shipment into a practice. Such a conclusion would render the "normal, customary and continuous" standard meaningless and enable a potential complainant to create a practice simply by sending messages to the potential respondent.

The second flaw in Complainant's attempt to remedy the flawed complaint is that the events and communications at issue took place during a limited period of time, from arrival of the cargo in the U.S. at the end of May, 2025, to mid-August of 2025, when the cargo was reexported. This is a far shorter time period than at issue in *Francis Sheka Kanu v. Ejike Dickson*, supra., and does not support a contention that the conduct at issue constitutes a practice.

III. CONCLUSION

For the reasons stated above and in in the memorandum supporting Respondent's cross-motion to dismiss, Complainant has failed to state a claim upon which relief can be granted. Accordingly, Respondent's motion to dismiss should be granted and this proceeding dismissed with prejudice.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is stylized with a large, looped 'W' and a cursive 'Rohde'.

Wayne R. Rohde
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Dated: October 14, 2025

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of October, 2025, the foregoing Respondent's Reply to Complainant's Response to Respondent's Cross-Motion to Dismiss was served via electronic mail on:

Roger Waterloo dba EcoBamboo, *Complainant*
rodebos@hotmail.com

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is stylized with a large, looped "W" and a cursive "Rohde".

Wayne R. Rohde